5. When the Court is *prima facie* satisfied about violation of any constitutional right of a group of people belonging to the disadvantaged category, it may not allow the State or the Government from raising the question as to the maintainability of the petition.

6. Although procedural laws apply on PIL cases, the question as to whether the principles of res judicata[3] or principles analogous thereto would apply depend on the nature of the petition and also facts and circumstances of the case.

7. The dispute between two warring groups purely in the realm of private law would not be allowed to be agitated as a PIL.

8. However, in an appropriate case, although the petitioner might have moved a Court in his/her private interest and for redressal of the personal grievances, the Court in furtherance of the public interest may treat it necessary to enquire into the state of affairs of the subject of litigation in the interest of justice.

9. The Court in special situations may appoint Commission or other bodies for the purpose of investigating into the allegations and finding out facts. It may also direct management of a public institution taken over by such Commission.

10. The Court will not ordinarily transgress into a policy. It shall also take utmost care not to transgress its jurisdiction while purporting to protect the rights of the people from being violated.

11. The Court would ordinarily not step out of the known areas of judicial review. The High Court although may pass an order for doing complete justice to the parties, it does not have a power akin to Article 142 of the Constitution of India.

12. Ordinarily the High Court should not entertain a writ petition by way of PIL questioning constitutionality or validity of a statute or a statutory rule.

GUIDELINES FOR ADMITTING PIL

The PIL has now come to occupy an important field in the administration of law. It should not be allowed to become 'Publicity Interest Litigation' or 'Politics Interest Litigation' or 'Private Interest Litigation' or 'Paisa Interest Litigation' or 'Middle-class Interest Litigation' (MIL).

The Supreme Court, in this context, observed: "PIL is not a pill or a panacea for all wrongs. It was essentially meant to protect basic human rights of the weak and the disadvantaged and was a procedure which was innovated where a public-spirited person files a petition in effect on behalf of such persons who on account of poverty, helplessness or economic and social disabilities could not approach the court for relief. There have been, in recent times increasingly instances of abuse of PIL. Therefore, there is a need to re-emphasise the parameters within which PIL can be resorted to by a petitioner and entertained by the court."[4]

Therefore, the Supreme Court laid down the following guidelines for checking the misuse of the PIL[5]:

1. The Court must encourage genuine and bona fide PIL and effectively discourage and curb the PIL filed for extraneous considerations.